

RESOLUTION NO. _____**A RESOLUTION APPROVING PROPOSITIONS TO IMPOSE THE 1% SPECIFIC PURPOSE SALES AND USE TAX IN LARAMIE COUNTY, STATE OF WYOMING, FOR THE EXCLUSIVE PURPOSE OF FUNDING SPECIFIC PURPOSES FOR SPECIFIC AMOUNTS; THE PROPOSITIONS TO BE VOTED ON AT A SPECIAL ELECTION TO BE HELD NOVEMBER 2, 2021.**

WHEREAS, pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) counties may impose an excise tax not to exceed two percent (2%) upon retail sales of tangible personal property, admissions and services made, and upon storage, use and consumption of tangible personal property, within the county, for specific purposes and in specific amounts as authorized by the qualified electors of the county (hereinafter the “Tax”); and

WHEREAS, the Board of County Commissioners (the “Commissioners”) of Laramie County, State of Wyoming, (the “County”), in response to the needs of the County and requests received from the City of Cheyenne, the Town of Pine Bluffs, the Town of Burns, and the Town of Albin (hereinafter, being sometimes individually referred to as “Sponsoring Entity” and collectively referred to as the “Sponsoring Entities”), has determined to make a source of funding available through imposition of an excise tax not to exceed one percent (1%) in the following specific amounts for the following specific purposes (the “Projects”):

Proposition #1:**PUBLIC SAFETY #3**

A. \$13,445,863.86 and interest earned thereon to Laramie County, the City of Cheyenne, the Town of Pine Bluffs, the Town of Burns, and the Town of Albin as follows:

1. \$4,262,000.00 to City of Cheyenne for Fire Truck Fleet Replacement Project to replace outdated and unreliable fire trucks.
2. \$906,968.00 to City of Cheyenne for Police Portable Radios Replacement Project to replace outdated and unsupported portable radios.
3. \$53,529.00 to City of Cheyenne for Police Electronic Evidence Storage Upgrade Project to update the electronic evidence storage capabilities of the Cheyenne Police Department.
4. \$50,000.00 to Town of Burns for maintenance and repair of town owned ambulance, vehicles, and machinery.

5. \$119,000.00 to Town of Pine Bluffs for Police Department Public Safety Measures Case Management System and equipment.
6. \$1,329,556.66 to Laramie County Combined Communications (Dispatch and 911) for Software Upgrade.
7. \$1,500,000.00 to Town of Pine Bluffs for Railroad Crossing Relocation Railroad crossing tie-in north of the newly constructed crossing and closure of unsafe crossing.
8. \$2,740,805.56 to Laramie County Fire District # 2 (LCFD #2) for Happy Jack Road Fire Station.
9. \$1,522,669.76 to Laramie County Fire District #3 (LCFD #3) for Albin Fire Station.
10. \$200,000.00 to Town of Albin for Purchase of Fire Hall and Update.
11. \$761,334.88 to Laramie County Fire District #8 (LCFD #8) for Apparatus Upgrade PS.

Proposition #2:

SENIOR CENTER

- A. \$10,151,131.22 and interest earned thereon to Laramie County for construction of a new Laramie County Senior Activity Center.

WHEREAS, the Commissioners have determined that a 1% Specific Purpose Sales and Use Tax should be imposed within the County pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) in order to fund the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease service payments thereon, and, if necessary and/or available, to be used to leverage or match federal/and or state grant funds, for the above-referenced Projects; and

WHEREAS, the Commissioners have determined it is necessary to submit the propositions for imposition of the Tax to the qualified registered electors of the County; and

WHEREAS, pursuant to the provisions of Wyo. Stat. §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A), before any proposition to impose the Tax shall be placed before the electors of the County, the Commissioners and the governing bodies of at least two-thirds (2/3) of the incorporated municipalities within the County shall adopt a resolution approving the propositions, setting forth a procedure for qualification of a ballot question for placement on the ballot, and specifying how excess funds shall be expended; and

WHEREAS, the Commissioners have proposed an authorization resolution detailing the propositions to be placed before the electorate.

NOW THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, STATE OF WYOMING, that the City of Cheyenne is in accord with the authorizing resolution as proposed, a copy of which is attached as Exhibit A and by this specific reference made a part hereof.

BE IT FURTHER RESOLVED that passage of this resolution by the governing body of the City of Cheyenne shall constitute approval as required by Wyo. Stat. § 39-15-203 (a)(iii)(A) and Wyo. Stat. § 39-16-203 (a)(ii)(A).

BE IT FURTHER RESOLVED that if any part or provision of this resolution is ever determined to be invalid or unenforceable, such determination shall not affect the remaining parts and provisions hereof, the intention being that each part or provision of this resolution is severable.

ADOPTED AND APPROVED as of the _____ day of _____, 2021.

CITY OF CHEYENNE

(SEAL)

Patrick Collins, Mayor

ATTEST:

Kristina F. Jones, City Clerk